

JUSTICE BLACKMUN delivered the opinion of the Court.

This case raises issues concerning the scope of judicial immunity from a civil suit that seeks injunctive and declaratory relief under § 1 of the Civil Rights Act of 1871, as amended, 42 U. S. C. § 1983, and from fee awards made under the Civil Rights Attorney's Fees Awards Act of 1976, 90 Stat. 2641, as amended, 42 U. S. C. § 1988.

Petitioner Gladys Pulliam is a state Magistrate in Culpeper County, Va. Respondents Richmond R. Allen and Jesse W. Nicholson were plaintiffs in a § 1983 action against Pulliam brought in the United States District Court for the Eastern District of Virginia. They claimed that Magistrate Pulliam's practice of imposing bail on persons arrested for nonjailable

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of Louisiana, *James E. Tierney* of Maine, *Stephan H. Sachs* of Maryland, *Francis X. Bellotti* of Massachusetts, *Frank J. Kelley* of Michigan, *William A. Allain* of Mississippi, *John D. Ashcroft* of Missouri, *Michael T. Greely* of Montana, *Paul L. Douglas* of Nebraska, *Brian McKay* of Nevada, *Gregory H. Smith* of New Hampshire, *Irwin I. Kimmelman* of New Jersey, *Robert Abrams* of New York, *Rufus L. Edmisten* of North Carolina, *Robert O. Wefald* of North Dakota, *Anthony J. Celebrezze, Jr.*, of Ohio, *Michael C. Turpen* of Oklahoma, *David Frohnmayr* of Oregon, *Leroy S. Zimmerman* of Pennsylvania, *Dennis J. Roberts II* of Rhode Island, *T. Travis Medlock* of South Carolina, *Mark V. Meierhenry* of South Dakota, *William M. Leech, Jr.*, of Tennessee, *Jim Mattox* of Texas, *David L. Wilkinson* of Utah, *John J. Easton, Jr.*, of Vermont, *Kenneth O. Eikenberry* of Washington, *Chauncey H. Browning, Jr.*, of West Virginia, *Bronson C. La Follette* of Wisconsin, and *A. G. McClintock* of Wyoming; for the American Bar Association by *Morris Harrell*, *W. Ervin James*, and *Phillip J. Roth*; for the Conference of Chief Justices by *Paul L. Friedman* and *Michael D. Sullivan*; for the Honorable Lawrence H. Cooke, Chief Judge of the State of New York, by *Paul A. Feigenbaum*, *Michael Colodner*, and *Kenneth Falk*; and for the Honorable Abraham J. Gafni, Court Administrator of Pennsylvania, by *Howland W. Abramson* and *Charles W. Johns*.

Briefs of *amici curiae* urging affirmance were filed for the American Civil Liberties Union et al. by *Burt Neuborne* and *E. Richard Larson*; and for the National Association of Criminal Defense Lawyers by *J. Lloyd Snook III*.